



FORMAL COMPLAINT - Case WECT24486-25/WECT23564-25 - Commissioner Nthabiseng Misconduct & Bias

1 message

Wilbur William Matthee <info@ethichawks.co.za> Sat, 10 Jan 2026 at 02:11
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Case Number: WECT24486-25/WECT23564-25

Date: 10 January 2026

Dear CCMA Director/ Regional Senior Commissioner

I am lodging a formal complaint regarding the gross irregularities and bias displayed by Commissioner Nthabiseng during my conciliation on 09 January 2026. I am a specialist nurse and a protected whistleblower under the Protected Disclosures Act (PDA). I attended the session while in a state of humanitarian crisis, currently homeless due to the retaliatory actions of my former employer.

- GROUNDS OF COMPLAINT

A. Pre-judgment and Failure to Apply Mind

At the very beginning of the session, the Commissioner stated, "nothing here relates to a protected disclosure dispute". This was said before I could present evidence of the "P1" risk reports and Board-level disclosures I made. This immediate dismissal demonstrates a "closed mind" and a failure to investigate the true nature of my referral.

B. Breach of the "Helping Hand" Principle

Under CCMA guidelines, a Commissioner has a duty to assist self-represented parties.

#The "Google it" Incident: When I explained that I am in a crisis, have never navigated the court system, and asked for the location of the Labour Court, the Commissioner replied: "You're gonna have to... Google it or something like that".

- Impact: Telling a destitute, self-represented person in a crisis to "Google" their path to justice is a failure of professional duty and an act of extreme dismissiveness.

C. Misdirection on Jurisdiction and Laws

The Commissioner repeatedly claimed the CCMA "doesn't have the power" to deal with protected disclosures.

- The Error: While the Labour Court arbitrates automatically unfair dismissals, the CCMA is mandated to conciliate them first.

- Discrimination: She further refused to "entertain" my claims of gender identity discrimination based on an earnings threshold. This is incorrect; the CCMA has a duty to conciliate discrimination claims regardless of income.

D. Bias Toward the Employer

The Commissioner "descended into the arena" by immediately agreeing with the employer's representative that the matter should move to the Labour Court. She ignored my detailed evidence that I did follow internal communication lines to the level of the Board, only to be met with "institutional silence" and salary cuts. By siding with the employer's technicalities, she ignored the substantive merits of my victimization.

3. EVIDENCE

I have an audio recording of this session (admissible under RICA) which confirms the Commissioner's dismissive tone and the specific "Google it" instruction.

4. DESIRED OUTCOME

I request that the Certificate of Outcome be set aside due to these irregularities. I demand a new conciliation session before a Senior Commissioner who is competent in the Protected Disclosures Act and can provide the "helping hand" required for a person in my vulnerable position.

Sincerely,

Sr. Wilbur Matthee

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